SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Criminal Appeal No. 175 of 2010

CNR: SCIN010001752010

Date: 10 January, 2014

Citation: (2014) 3 SCC 92

CORAM: Hon'ble B.S. Chauhan, F.M.I. Kalifulla, Chandramauli Kr. Prasad, T.S. Thaku

Petitioner: Hardeep Singh & Others

- VERSUS -

Respondent: State of Punjab & Others

DOMAIN: CRIMINAL PROCEDURE & TRIAL POWERS **STATUS: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Power under Section 319 CrPC is discretionary and extraordinary. The degree of satisfaction required is more than a prima facie case as at the stage of framing charges, but short of satisfaction beyond reasonable doubt.

STATUTES APPLIED: Section 319 CrPC, Section 190 CrPC, Section 209 CrPC

DISPOSITION: GUIDELINES ON SUMMONING ADDITIONAL ACCUSED UNDER SECTION 319 CRPC SETTLED

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench settled the law on Section 319 CrPC, holding that courts have extraordinary power to summon any person not named in the chargesheet if evidence recorded in court shows strong probability of their complicity.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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